IN THE COURT OF APPEALS
FIRST APPELLATE DISTRICT
STATE OF OHIO

Appellate Case No. C2100133
Trial Court Case No. A180-4206

ANDREW WHITE, et al.,
Appellant,

v.

CITY OF CINCINNATI, OHIO, et al.
Appellees.

Appeal from Case No. A180-4206

AMENDED MERIT BRIEF OF PLAINTIFF-APPELLANTS ANDREW WHITE, VENA JONES-COX, CINCINNATUS PROPERTY MANAGEMENT LTD, PROFFITT REAL ESTATE SERVICES, INC, AND TASHAZ, LLC

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I. INTRODUCTION

Plaintiffs, Cincinnati homeowners and small businesses, maintain a constitutional right to defend themselves, their families, and their property through use of a private security alarm. And they also maintain a constitutional right to telephone police, through their security alarm representative, potential criminal activity when their security alarms are triggered.

However, the City of Cincinnati punishes the exercise of each right, forbidding each for all practical purposes, unless homeowners and small business owners first pay $50 and $100 to the City for a perfunctory "permit." This is true both for homeowners that employ a security alarm that ostensibly results in a telephone call to a police department once triggered, and for homeowners employing types of security alarms that by their nature never result in such a telephone call to police.

For a number of reasons, this "Alarm Ban" is impermissible: requiring payment of a monetary charge as a prerequisite to the exercise of the right to self-defense, the right to speak, or the right to petition government for assistance (1) is not narrowly tailored to serve a compelling governmental interest; (2) imposes an unconstitutional condition; and (3) fails to qualify as a permissible user fee, and is therefore an impermissible monetary exaction and improper tax. Indeed, the only court to have provided any analysis on the matter has concluded that the Alarm Ban's monetary charge is not a valid user fee. *See* Order of the Southern District of Ohio Remanding Case to State Court, attached to Plaintiffs' Motion for Summary Judgment as Exhibit 7.

Accordingly, this Court should reverse the Court of Common Pleas January 11, 2021 Entry Overruling Plaintiffs' Motion for Partial Summary Judgment and Granting Defendants' Motion for Summary Judgment, and direct the Court to enjoin the City from requiring $50 and

$100 payments as a prerequisite using security alarms for defense or reporting when security alarms have been triggered.[1]

II. STATEMENT OF THE FACTS AND CASE

Plaintiffs initiated this civil rights action on July 31, 2018, challenging, facially and as applied to them, the City of Cincinnati's restraint on security-alarm-related self-defense and communications. Plaintiffs have been unable to enjoin the restraints and exactions because the City improperly removed this case to Federal District Court in 2018, and the Trial Court then deliberated on the substantive issues presented by this case for an extended period.

A. The City's Alarm Ban punishes those who rely on a security alarm either as a basis for communicating information to the police or simply defending themselves and their property, unless a "permit" is first purchased from the City.

Some security alarms are set up to only make a noise once-triggered; others result in a phone call or text message to the home or business owner once-triggered, and some of those authorize telephone calls to the police when the owner cannot be reached. *See* Affidavit of Kathleen Fry, attached to Plaintiffs' MSJ at Exhibit 6 (alarm companies "confer with the clients' local police dispatcher to determine which phone number they would like our clients' alarm agents to use for alarm notification to the responding authorities . . . when a security alarm alerts, the alarm agent immediately calls the homeowner's primary number to verify, followed by a homeowners secondary number to verify if applicable . . . the alarm agent calls the police only if the homeowner cannot be reached, or is reached and indicates danger . . . when the alarm agent

[1] Plaintiffs sought summary judgment only on declaratory and injunctive relief. Additional claims, such as Plaintiffs' class claims, claims for restitution, and claim for attorneys fees were, due to their sequential nature, not presented prior to the Trial Court's January 11, 2021 Entry.

calls the police, the agent simply notifies the police that an alarm has been triggered, that the homeowner cannot be reached, and any other relevant surrounding circumstances . . .").

No matter which setting they use, Cincinnati homeowners are forbidden from protecting their home with a security alarm, whether they contact the police or not, unless they first pay the City a monetary exaction of between $50 and $100 ("Alarm Assessment") for a land-use permit authorizing either (1) telephone calls to the police; or (2) home defense without the police. The City mandates this permit irrespective of whether the police are already being paid by homeowners through taxation to fight crime, irrespective of whether the police are ever relied upon, and irrespective of whether false alarms are ever made.

More specifically, a Cincinnati homeowner may not (1) "alert[] an entity which notifies a government organization of [an unlawful act's commission or occurrence];" (2) "give a signal, either visual, audible or both, or cause[] to be transmitted a signal;" or (3) "give[] a signal [of an unlawful act, or of an emergency], either visual, audible, or both only at the alarm site and which does not alert a governmental organization." *See* Sections 807-1-A2; 807-1-A4(2)(a); 807-1-L. Communicating the potential occurrence of an unlawful act or emergency does not result in any penalty unless that communication is made by the homeowner's security alarm representative in reliance on a triggered alarm. Any homeowner who so communicates is fined $100 initially, and then $800. Section 807-1-A4(2)(d).

Further, for no textually explicit, coherent, or explicable reason, the City charges twice as much to local businesses who defend themselves or inform the City of criminal activity through alarm-related information: "residential alarm users shall pay a non-refundable, non-transferable, user and location-specific biennial fee of $50 . . . Non-residential Alarm Users shall pay a non-

refundable, non-transferable, user and location-specific biennial fee of $100." Section 807-1-A4(2)(b) and (c).

Likewise, there is no textual limit anywhere in law governing how Alarm Assessment funds must be used once they are collected. And The City's own public records display that all revenue from these assessments are placed into the City's "General Funds Account," rather than in an account established for alarm-related expenses. *See* Correspondence Displaying Overcollection of Home Security Exactions, attached to Plaintiffs' Motion for Summary Judgment ("MSJ") at Exhibit 3. And the exactions are well beyond what is necessary to accomplish the City's administrative ends: the City summarizes the "total cost to administer" the alarm system program as $192,403.31 per year. *Id.* However, the City has collected at least $488,665 in alarm registration fees in 2015, $242,901 in alarm registration fees in 2016, and $476,098 in alarm registration fees in 2017. *Id.* Thus, the City typically collects more than double the costs of administering the program in alarm registration fee revenue alone (this number does not include other assessments for false alarms, for alarm business registration, or for fines imposed on those who communicate without a license). And even these figures dramatically overstate the actual costs imposed upon the City be homeowners and small businesses using security alarms.

Relatedly, there is no textual requirement that the City calibrate the amounts of the Alarm Assessments through textual, statutory, formal, or individualized findings calculating the negative costs imposed on the public by security alarms. The City failed to even track homeowners' alarm funds at all until this lawsuit was filed.

B. The City has impermissibly coerced either payments, silence, or defenselessness from Plaintiffs and many others.

Thousands of residents, homeowners, and business owners are forced to pay the Assessment. *See, generally*, Exhibits 2 and 3 to Plaintiffs MSJ. This includes the Plaintiffs, against whom the City has enforced its restraints. Plaintiff Vena Jones-Cox was forced to pay the alarm license fee of $50 to communicate in defense of herself and her home and a separate alarm license fee of $100 to communicate in defense of herself and her office. *See* Defendants' Response to Plaintiffs' Interrogatories, at No. 3, attached to Plaintiffs' MSJ as Exhibit 5.

Plaintiff Andrew White reported evidence of crime at one of his Cincinnati homes and swiftly drew a fine of $100 from the City for doing so without first paying the City. Verified Complaint, Paragraphs 8-14, 43-45, Exhibit 2 to Complaint. The City informed him that the next communication and each communication thereafter reflecting the triggering of a security alarm, irrespective of the seriousness or validity of the crime reported, would cost him $800. *Id.*, at Paragraph 44; *see also* Exhibit 2. The City further informed him that these fines would persist even if Mr. White simply utilized a "local" alarm signal that alerts a criminal that he has been detected on the property (akin to a car alarm). *Id.* As a result, Mr. White has been forced to chill his communication with the police and limit his defenses by removing his security alarms, despite risking greater exposure to further criminal conduct.

C. Federal District Court determines that the Alarm Ban's Assessment is not a "user fee."

Only one court has provided analysis on whether the Alarm Ban's Assessments are permissible user fees; and that Court concluded that they are not. After Plaintiffs moved for preliminary injunction in this case, the City slowed matters by improvidently removing the matter to federal court. There, the District Court correctly determined that the Court maintained

no jurisdiction to adjudicate this matter because (1) while federal courts may enjoin user fees, the Tax Injunction Act deprives them of jurisdiction to enjoin assessments that operate as taxes; and (2) these Assessments are back-door taxes rather than permissible user fees. *See* Order of the Southern District of Ohio Remanding Case to State Court, attached to Plaintiffs' MSJ as Exhibit 7.[2] Specifically, Judge Barrett focused on the arbitrariness of the assessments, holding as follows:

- "[R]esidents or non-residents are not receiving a service for the payment of the registration fee."
- "The City does not respond any differently to a call from an alarm system than it does a call made directly to the fire or police department."[3]
- "The City's alarm registration fee is based solely on status instead of the use of any city service."
- "There is no correlation between the cost of false alarms to the City and the amount of the alarm registration fee. This indicates that the alarm registration fee . . . is not a fee based on the costs associated with alarm usage."
- Homeowners' funds are used for nothing other than "provid[ing] a general public benefit" since "fees which are collected annually are placed into the City's general fund," and "there is no evidence of a special fund to benefit the regulated [homeowners]."

[2] White v. City of Cincinnati, Case No. 18-CV-533 (S.D. Ohio 2019), Doc. 9, PageID 184-185.

[3] This conclusion follows from, inter alia, the City's Response to Plaintiffs' Interrogatory No. 18. Further, the City concedes that those without security alarms receive the same level of police protection without having to pay any assessment. See Defendants' Response to Plaintiffs' Interrogatory No. 18 ("it is possible to request a police response without having an alarm system…").

Id. These facts and findings displaying the Alarm Assessments to be improper taxes mandated a remand to state court.

D. Without explanation, State Trial Court denies Plaintiffs' Motion for Summary Judgment

In support of the claims before the Court, Plaintiffs submitted the following Summary judgment evidence, in addition to Plaintiffs' Verified Complaint: relevant city ordinances (Exhibit 1); correspondence from the city threatening and imposing security alarm exactions and fines on Plaintiffs (Exhibit 2); correspondence displaying the overcollection of home security alarm exactions (Exhibit 3); the affidavit of Andrew White (Exhibit 4); the City's response to Plaintiffs' Interrogatories (Exhibit 5); the affidavit of home security alarm expert Kathleen Frye (Exhibit 6); the Order of the Southern District of Ohio remanding this case to state court (Exhibit 7); the City's Supplemental Responses to Plaintiffs' discovery requests (Exhibit 8). The Trial Court, in a one-page Entry without explaining its reasoning on January 11, 2021, denied Plaintiffs' Motion and granted Defendants Motion for Summary Judgment.

III. LAW AND ARGUMENT

Assignments of Error: The Trial Court erred in denying Plaintiffs' Motion for Summary Judgment, which sought to declare the City of Cincinnati's prohibition on security alarm usage without prior payment of an arbitrary assessment unconstitutional, and to enjoin the same.

The Trial Court erred in granting Defendants' Motion for Summary Judgment (while denying Plaintiffs' Motion for Summary Judgment) because the Alarm Assessment is an unconstitutional condition on Plaintiffs' exercise of their rights to speak with or petition police and to defend themselves, their families, and their property.

The Supreme Court has explained that the Unconstitutional Conditions Doctrine "vindicates the Constitution's enumerated rights by preventing the government from coercing people into giving them up." *Thompson v. City of Oakwood*, 3:16-cv-169 (S.D. Ohio 2018), citing *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595 (2013). This doctrine applies to Plaintiffs' right to communicate evidence of potential criminal activity to police (whether directly or through their security alarm representative):

> Even though a person has no 'right' to a valuable government benefit and even though the government may deny him the benefit for any number of reasons, there are some reasons upon which the government may not rely. It may not deny a benefit to a person on a basis that infringes his constitutionally protected interests —especially, his interest in freedom of speech. For if the government could deny a benefit to a person because of his constitutionally protected speech or associations, his exercise of those freedoms would in effect be penalized and inhibited. This would allow the government to 'produce a result which (it) could not command directly.

Perry v. Sindermann, 408 U.S. 593, 597 (1972), citing *Speiser v. Randall*, 357 U.S. 513, 526 (1958); *see also Planned Parenthood of Greater Ohio v. Himes*, 888 F.3d 224, 231 (6th Cir. 2018). The Alarm Assessment punishes homeowners by imposing fines on them when they communicate information or petition police for assistance without first paying the Assessment. This impediment to police services, on the basis of speech, impermissibly coerces Plaintiffs and others employing home security alarms into either paying for their rights, refraining from speaking at all, or subjection to extremely large fines.

This doctrine also applies to Plaintiffs' right to employ a home security alarm to defend themselves, their families, and their property without reliance on the City's police. *Nollan* and *Dolan* "involve a special application" of [the unconstitutional conditions] doctrine that governs when owners apply for land-use permits, such as permits to defend a particular location with a security alarm. When a city conditions receipt of a permit on the payment of a monetary

exaction, "the burden [is] on the city to justify the required dedication." *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. at 604, ("We have said in a variety of contexts that 'the government may not deny a benefit to a person because he exercises a constitutional right"), citing *Nollan v. California Coastal Comm'n*, 483 U.S. 825 (1987), and *Dolan v. City of Tigard*, 512 U.S. 374 (1994); *see also Planned Parenthood*, *supra* ("The unconstitutional-conditions doctrine is not limited to First Amendment rights, but rather, applies in a number of contexts").

This impediment of having to pay the City an Alarm Assessment prior to defending self, family, and property impermissibly coerces Plaintiffs and others employing or seeking to employee home security alarms into choosing between retaining their personal property and exercising their rights. Consequently, whether reviewed as a speech restriction, a petitioning restriction, a self-defense restriction (or even a basic property rights restriction), the Alarm Ban's imposition of an assessment that must be paid before these rights are exercised interposes an unconstitutional condition on their exercise. This is especially so because the City's Assessment fails to feature the necessary attributes of a valid user fee.

A. Plaintiffs maintain a constitutional right to inform and petition government by causing their representatives to telephone police regarding potential criminal activity.

Above "all else, the First Amendment means that government" generally "has no power to restrict expression because of its message, its ideas, its subject matter, or its content." *Police Dept. of Chicago v. Mosley*, 408 U.S. 92, 95 (1972). And Section 11, Art I of the Ohio Constitution has been interpreted as more protective yet of expression.[4] The First Amendment

[4] See inter alia, McIntyre v. Ohio Elections Comm'n, No. 90AP-1221, 1992 WL 230505, at 6 (Ohio Ct. App. Apr. 7, 1992), aff'd sub nom. McIntyre v. Ohio Elections Comm., 1993-Ohio-224, 67 Ohio St. 3d 391 ("Unlike the First Amendment to the United States Constitution, the Ohio constitutional provision expressly gives to each citizen not only the right to speak but, also, the right both to write and to publish sentiments on any subject . . . The Ohio Supreme

and Section 11 protect the making of telephone calls to the police, which is precisely how many home security alarms are "used," irrespective of who is making the call, whether made to (1) merely inform the police that a burglary alarm has detected a potential home invasion; or (2) actively petition the police for assistance. This remains true even when the speaker is unsure of the exact threat level.

First, the Supreme Court has emphasized that "the creation and dissemination of information are speech within the meaning of the First Amendment. Facts, after all, are the beginning point for much of the speech that is most essential to advance human knowledge and to conduct human affairs." *Sorrell v. IMS Health Inc.*, 131 S.Ct. 2653, at 2667 (2011); *see also Jian Zhang v. Baidu.com Inc.*, 10 F. Supp. 3d 433, 438–39 (S.D.N.Y. 2014)(noting that the First Amendment "protects the collection and communication of facts as much as it protects opinions, including facts that are not ideologically laden—such as names of crime victims in three-sentence crime reports, names of accused juvenile offenders, lists of bestselling books, lists of tenants who had been evicted by local landlords, information in a mushroom encyclopedia, recipes in a cookbook, and computer program source code" (citing cases)).

Thus, "[t]he First Amendment protects even dry information, devoid of advocacy, political relevance, or artistic expression," and " the creation and dissemination of information are speech within the meaning of the First Amendment." *Sorrell*, *supra*, citing *Bartnicki v. Vopper*, at 532 U.S. 514, at 527 (2001)("[I]f the acts of 'disclosing' and 'publishing' information do not constitute speech, it is hard to imagine what does fall within that category, as distinct from the category of expressive conduct" (some internal quotation marks omitted)); *Expressions Hair*

Court has recognized the broad scope of the Ohio constitutional protection for the freedom of expression of sentiments").

Design v. Schneiderman, 137 S. Ct. 1144, 1150–51 (2017)("The law tells merchants nothing about the amount they are allowed to collect from a cash or credit card payer . . . What the law does regulate is how sellers may communicate their prices. * * * In regulating the communication of prices rather than prices themselves, § 518 regulates speech.").

Second, communication, telephone calls and otherwise, directed towards government in general or the police in particular, are protected by the First Amendment. "The submission of complaints and criticisms to nonlegislative and nonjudicial public agencies like a police department constitutes petitioning activity protected by the petition clause." *Gable v. Lewis*, 201 F.3d 769, at 771 (6th Cir. 2000), citing *California Transport v. Trucking Unlimited*, 404 U.S. 508, 510-11 (1972)(holding that "the right to petition extends to all departments of the Government" and "that it would be destructive of rights of association and of petition to hold that groups with common interests may not … use the channels and procedures of state and federal agencies and courts to advocate their causes and points of view . . ."); *see also BE & K Const. Co. v. NLRB*, 536 U.S. 516, 524 (2002) (recognizing the right to petition the Government for a redress of grievances as "one of the most precious of the liberties safeguarded by the Bill of Rights").

Likewise, in *Watson v. City of Maplewood*, the Court concluded that "[i]n the instant case the Court finds that with her calls to the police, Watson engaged in constitutionally protected activity." 2017 WL 4758960, at p. 4–7 (E.D. Mo. Oct. 20, 2017)("The Nuisance Policy penalized her for exercising her First Amendment rights by using her constitutionally protected activity as a basis for identifying her home as a nuisance, and then utilizing said identification as a basis to revoke her ability to obtain an occupancy permit for a period of six months"); *Whisman through Whisman v. Rinehart*, 119 F.3d 1303, 1313 (8th Cir. 1997)("Government action designed to

prevent an individual from utilizing legal remedies may infringe upon the First Amendment right to petition . . ."); *Meyer v. Board of County Commissioners of Harper County, Oklahoma*, 482 F.3d 1232, 1243 (10th Cir. 2007) ("denying the ability to report physical assaults is an infringement of protected speech . . . we thus conclude that 'filing a criminal complaint with law enforcement officials constitutes an exercise of the First Amendment right' to petition the government for the redress of grievances"); *Estate of Morris v. Dapolito*, 297 F.Supp.2d 680, 692 (S.D.N.Y. 2010)("The rights to complain to public officials and to seek administrative and judicial relief are protected by the First Amendment"); *Seamons v. Snow*, 84 F.3d 1226, 1238 (10th Cir.1996)(denying the ability to report physical assaults is an infringement of protected speech); *Rupp v. Phillips*, 15 Fed.Appx. 694 (10th Cir.2001)(reporting a possible commission of a crime was protected by the First Amendment); *Trustees of Village of Groton v. Pirro*, 58 N.Y.S.3d 614, at 621 (N.Y. App. Div. 2017)("constitutionally protected conduct is implicated" when a municipal ordinance "deters tenants from seeking police assistance," and "the right to petition the government for redress of grievances . . . includes the right to make criminal complaints to the police").

Thus, "summoning the police," "complaints to the police," "seeking help from the police," and certainly telephone calls to the police are forms of speech and petitioning protected by the First Amendment and Section 11, Article I. This is particularly so when the person speaking is a potential crime victim or speaking on behalf of a potential crime victim. *See Pirro*, *supra*. (protecting those "summoning police because they were victimized by criminal activity, or who otherwise exercised their constitutionally-protected right to request police assistance"). And as the right to petition protects "a particular freedom of expression," it is analyzed according to the same constitutional principles that apply to the right of free speech. *Id.*, citing *McDonald v.*

Smith, 472 U.S. 479, 482 (1985). The possibility that no crime has been committed on occasions when some of these phone calls are made to the police department (undeniably in good-faith) fails to alter the reality that Plaintiffs' communications and proposed communications are protected speech. *See Turner Broadcasting System v. FCC*, 512 U.S. at 640, 114 S.Ct. 2445 ("[T]he mere assertion of dysfunction or failure in a speech market, without more, is not sufficient to shield a speech regulation from the First Amendment standards …."); *see also Johnson*, *supra*. (when placing a phone call to the police that could signify the existence of criminal activity, "certainty is not required.").

Third, speech and petitioning is no less protected when a citizen opts to communicate his or her message through associating with an attentive professional - - in Plaintiffs' case here, a representative from their security alarm agency. The Supreme Court has expressly protected the right to hire a professional to speak on one's behalf, and noted that this right may not be hindered simply because the citizen may still speak on his own behalf:

> That appellees remain free to employ other means to disseminate their ideas does not take their speech through petition circulators outside the bounds of First Amendment protection. Colorado's prohibition of paid petition circulators restricts access to the most effective, fundamental, and perhaps economical avenue of political discourse . . . That it leaves open "more burdensome" avenues of communication, does not relieve its burden on First Amendment expression. The First Amendment protects appellees' right not only to advocate their cause but also to select what they believe to be the most effective means for so doing.

Meyer v. Grant, 486 U.S. 414, 422–24 (1988); *see also Brinkman v. Budish*, 692 F. Supp. 2d 855, 858–66 (S.D. Ohio 2010), citing *Roberts v. U.S. Jaycees*, 468 U.S. 609, 622 (1984)("[I]mplicit in the right to engage in activities protected by the First Amendment [is] a corresponding right to associate with others in pursuit of a wide variety of political, social, economic, educational, religious, and cultural ends"); *Nat'l Inst. of Family & Life Advocates v.*

Becerra, 138 S. Ct. 2361, 2371–72 (2018)("Speech is not unprotected merely because it is uttered by 'professionals.'"). Thus, the Alarm Ban suppresses Plaintiffs' speech even though Plaintiffs remain free to personally call the police to report criminal activity themselves because it hinders Plaintiffs' most effective and least burdensome means of communicating this information to the police.

Fourth, Plaintiffs maintain a right to communicate with government, through representatives and otherwise, without subjection to unique penalties on the basis of the content of their telephone calls or the identify of the individual making the call. Binding precedents restrict government from discriminating "in the regulation of expression on the basis of the content of that expression." *Hudgens v. NLRB*, 424 U.S. 507, 520 (1976); *Reed v. Town of Gilbert*, 576 U.S. 155, 163–164 (2015). As relevant here, a law is content-based if "a regulation of speech 'on its face' draws distinctions based on the message a speaker conveys." *Reed*, 576 U.S., at 163, 135 S.Ct. 2218. That description applies to a law that "singles out specific subject matter for differential treatment." *Id.*, at 169, 135 S.Ct. 2218. For example, "a law banning the use of sound trucks for political speech—and only political speech—would be a content-based regulation, even if it imposed no limits on the political viewpoints that could be expressed." *Id.*

The Supreme Court is unmistakably clear that differential treatment in response to who is placing a telephone call or what information is communicated during that call is an affront to this proscription on content and speaker-based speech limits. *Barr v. Am. Ass'n of Pol. Consultants, Inc*, 140 S. Ct. 2335, 2346–48 (2020). Just this past year in *Barr*, the Court explained this:

> As relevant here, one restriction prohibited "any call (other than a call made for emergency purposes or made with the prior express consent of the called party) using any automatic telephone dialing system or an artificial or prerecorded voice" to "any telephone number assigned to a paging service, cellular telephone service, specialized mobile radio service, or other radio common carrier service, or any service for which the called party is charged for the call."

> ***
> Under § 227(b)(1)(A)(iii), the legality of a robocall turns on whether it is "made solely to collect a debt owed to or guaranteed by the United States." A robocall that says, "Please pay your government debt" is legal. A robocall that says, "Please donate to our political campaign" is illegal. That is about as content-based as it gets. Because the law favors speech made for collecting government debt over political and other speech, the law is a content-based restriction on speech.
> ***
> "[T]he Court has held that "'laws favoring some speakers over others demand strict scrutiny when the legislature's speaker preference reflects a content preference.'. . . The law here focuses on whether the caller is speaking about a particular topic. In *Sorrell*, this Court held that a law singling out pharmaceutical marketing for unfavorable treatment was content-based. So too here . . .The law here, like the Vermont law in *Sorrell*, "does not simply have an effect on speech, but is directed at certain content and is aimed at particular speakers." *Ibid*. . .

Barr v. Am. Ass'n of Pol. Consultants, Inc, 140 S. Ct. 2335, 2336, 2346–48 (2020), citing *Reed*, 576 U.S., at 170 and *Sorrell v. IMS Health Inc.*, 564 U.S. 552, 563–564 (2011); *see also Wreyford v. Citizens for Transp. Mobility, Inc.*, 957 F. Supp. 2d 1378, 1379–82 (N.D. Ga. 2013)("'automated calls to cell phones' is a type of expression, if not pure speech, protected by the First Amendment").

Here, the Burglary Alarm Exaction plainly operated in response to speech - - preventing, suppressing, and punishing protected communication. First, the text of the ordinance regulates in response to the "use" of an alarm, including through "alerts," "notifications," and "signals," directed to police (or private security). *See* Sections 807-1-A2; 807-1-A4(2)(a); 807-1-L; Section 807-1-A4(2)(d). Second, the City concedes that alarms are "used" when "Alarm Businesses and/ or Alarm Users contact the Cincinnati Police Department in a variety of ways including but not limited to calling 911, calling other numbers . . . making face-to-face request, texting, emailing, faxing, and using other means…." *See* Defendants' Response to Plaintiffs' Interrogatory No. 16, attached to Plaintiffs' MSJ as Exhibit 5. Third, evidence confirms that an Alarm Business, only if unable to reach homeowners first, calls the City Police Department to inform it that an Alarm

User's alarm has alerted, alongside any surrounding circumstances. Declaration of Kathleen Frye, attached to Plaintiffs' MSJ as Exhibit 6 ("[T]he alarm agent calls the police only if the homeowner cannot be reached, or is reached and indicates danger . . . when the alarm agent calls the police, the agent simply notifies the police that an alarm has been triggered, that the homeowner cannot be reached, and any other relevant surrounding circumstances . . . they simply pass the information on to the police, who then decide how to respond.")

This is the speech that restrained and punished in the absence of prior payment of an alarm registration assessment. Third, these calls to the police, whether indicating that one's burglary alarm has potentially detected crime or further requesting police assistance, convey clear factual information that is protected.

Thus, "using" a home security alarm is accomplished through protected speech. Nevertheless, pursuant to the text of the ordinance, homeowners are fined $100 at first, and then $800, when they call to notify the police of a crime through their burglary alarm agent. Section 807-1-A4(2)(d).

Further, the Alarm Ban is inherently content and speaker-based: the subject matter of a potential crime may not be discussed with the police if one uses a burglary alarm or is a burglary alarm agent. *See* Sections 807-1-A2; 807-1-A4(2)(a); 807-1-L. Communicating information relating to the crime of home break-ins arising from security alarms is singled out for special treatment, while no assessments apply to the reporting of other crimes. More globally, only speech reporting potential criminal conduct, as reflected by a triggered alarm, is singled-out, restrained, punished, and suppressed. Further, the restrictions are speaker-based: communicating the possible occurrence of an unlawful act or emergency does not result in any penalty unless it is done through the representative of one's alarm company. If made through an alarm or alarm

agent, the homeowner who so signals is fined $100. Section 807-1-A4(2)(d). Meanwhile, identical speech reporting criminal conduct is invited when from speakers other than homeowners' security alarm businesses or from those reporting the content reflecting potential criminal conduct not uncovered by a security alarm. *See* Verified Complaint, Paragraphs 30-33 (City police exclaiming "we want to hear from you!"). Neighbors and family members are not restrained from or punished after calling the police to communicate that "something doesn't look right" at a home or business. And homeowners are free to suspend their lives and stand guard themselves all day, calling to report criminal conduct when they observe it. In continuing to emphasize how homeowners report that an alarm is triggered, who reports that an alarm is triggered, and the content of what is reported, the City reinforces the reality that its Alarm Ban and Alarm Assessments are content-based burdens on protected speech, and therefore subject to strict scrutiny. Indeed, the prior monetary charge and fines apply only to alarm-based communications, i.e. speech reporting potential criminal conduct as revealed by a triggered security alarm. Thus, the Alarm Assessment is selective, and it stands between a homeowner and his speech to the City through an alarm agent despite the City's rightly-avowed emphasis on "advancing and encouraging innovative strategies to prevent crime." *Id.*

Consequently, the Alarm Ban hinders and suppresses protected speech in the form of telephone calls, and does so in a content-based and speaker-based manner by targeting call to the City's police to report facts surrounding potential criminal activity adduced through a triggered burglary alarm.[5]

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[5] At this point, an important proviso may assist this Court: a regulation need not be a total prohibition of speech to impermissibly infringe upon protected expression. "The power to impose a license tax on the exercise of [first amendment] freedoms is indeed as potent as the power of censorship which this Court has repeatedly struck down." Century Fed., Inc. v. City of Palo Alto, 710 F. Supp. 1559, 1561–62 (N.D. Cal. 1988), citing, inter alia, Murdock v.

B. The Trial Court erred because the City's Alarm Ban Assessments impose impermissible conditions on Plaintiffs' exercise of their aforementioned rights to communicate and petition.

The Alarm Ban's $50 and $100 Assessments, content-based prior restraints on important communication, fail First Amendment scrutiny: the Assessment is an unconstitutional condition on protected speech and petitioning rather than a valid user fee.

There is no reason to belabor the point that the Alarm Ban is subject to strict scrutiny because it is (1) content-based; (2) speaker-based; and (3) a prior restraint on communication. First, "a regulation or licensing requirement that imposes a prior restraint on expression protected by the First Amendment bears "a heavy presumption against its constitutional validity." *BJS No. 2, Inc. v. City of Troy, Ohio*, 87 F. Supp. 2d 800, 805–15 (S.D. Ohio 1999), citing *Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 70 (1963). "Furthermore, an ordinance that imposes upon a proprietor the burden of obtaining a permit in order to engage in constitutionally protected activity is properly analyzed as a prior restraint." *Id.* "A prior restraint is an administrative or judicial order" that forbids protected speech in advance," and "indeed, we generally presume prior restraints are unconstitutional." *Novak v. City of Parma*, No. 18-3373, 2019 WL 3403893, at 7 (6th Cir. July 29, 2019). Meanwhile, a "law that is content based" is also "subject to strict scrutiny." *Reed*, 576 U.S., at 165.

Pennsylvania, 319 U.S. 105, 111, and 113 (1943) (citations omitted); Cox v. New Hampshire, 312 U.S. 569, 576–78 (1941). In the seminal case of Murdock, the Supreme Court declared that "[f]reedom of speech … [must be] available to all, not merely to those who can pay their own way," that "[a] state may not impose a charge for the enjoyment of a right granted by the federal constitution," and that "the power to tax the exercise of a [constitutional] privilege is the power to control or suppress its enjoyment." "Thus, any effort by a government to impose a tax upon the means or instruments used to engage exclusively in First Amendment rights, as well as doing so by targeting a small segment of the population, presents a very real potential to destroy, i.e., to stifle, the meaningful and effective exercise of such rights." Lamar Advantage, infra., at 816-818. Thus, it is not significant to this Court's analysis that the Alarm Ban "merely" imposes a monetary charge as a prerequisite to otherwise-protected communication rather than imposing a death sentence in response to communication.

To withstand strict scrutiny, a law that serves a compelling government interest must be narrowly tailored to achieve that interest. *Reed*, 135 S.Ct. at 2231. Accordingly, "[i]f a less restrictive alternative would serve the [g]overnment's purpose, the legislature must use that alternative." *United States v. Playboy Entm't Grp., Inc.*, 529 U.S. 803, 813 (2000). "[B]ecause restricting speech should be the government's tool of last resort, the availability of obvious less-restrictive alternatives renders a speech restriction overinclusive." *Discovery Network*, *supra.*, 507 U.S. at 417 n. 13; *see also Schneider v. New Jersey*, 308 U.S. 147, 162 (1939) ("There are obvious methods of preventing littering. Amongst these is the punishment of those who actually throw papers on the streets."). Clearly, then, this Court must pay homage to "the animating First Amendment principle that government must consider pursuing its interests through conduct-based regulations before enacting speech-based regulations." *Valle Del Sol Inc. v. Whiting*, 709 F.3d 808, 819–28 (9th Cir. 2013).

Further, a restriction on speech "must not be more extensive than is necessary to serve" a substantial government interest—i.e., it should not be overinclusive. *World Wide Rush, LLC v. City of Los Angeles*, 606 F.3d 676, 684 (9th Cir.2010); *Turner Broad. Sys., Inc. v. FCC*, 512 U.S. 622, 665 (1994) ("To satisfy the narrow tailoring requirement, 'the Government … bears the burden of showing that the remedy it has adopted does not burden substantially more speech than is necessary to further the government's legitimate interests"). Simply put, the restriction cannot be overinclusive by "unnecessarily circumscrib[ing] protected expression." *Republican Party of Minn. v. White*, 536 U.S. 765, 775 (2002) (citation omitted).

Nor can the restriction be underinclusive by "leav[ing] appreciable damage to [the government's] interest unprohibited." *Reed*, *supra.*, at 2232, quoting *White*, at 780). The nature and breadth of an enactment's exception calls into question the necessity of its rule: a law's

failure to address a wide swath of conduct implicating its supposed concern "diminish[es] the credibility of the government's [stated] rationale for [its] restrict[ion]." *City of Ladue v. Gilleo*, 512 U.S. 43, 52 (1994). Or, as the Supreme Court has elsewhere put it, the compellingness of the government's putative interest is undermined when its law "leaves appreciable damage to [the] supposedly vital interest unprohibited." *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U.S. 520, 547 (1993) (internal quotation marks omitted). The insight is simple: A law's failure to cover "significant tracts of conduct implicating [its] putatively compelling interes[t] can raise … the inference that the … claimed interest isn't … so compelling after all." *Yellowbear v. Lampert*, 741 F.3d 48, 60 (C.A.10 2014).

Here, the City has conditioned citizens' rights to communicate evidence of criminal conduct at their home or business, uncovered through home security alarms, on citizens' prior payment of a non-nominal assessment. Failure to pay this assessment as a prerequisite to communicating results in fines of up to $800 per "unlicensed" communication. To justify this uniquely oppressive regime, the City professes a governmental interest in "recouping costs expended by the City of Cincinnati associated with false alarms." *See* City's Response to Plaintiffs' Interrogatories (No. 10: "the purpose of enforcing Chapter 807 is to recoup cost expended by the City of Cincinnati associated with false alarms."), attached to Plaintiffs' MSJ as Exhibit 5. However, even if this interest were compelling, the City cannot carry its burden of establishing that its prior assessments of $50 and $100, and fines of $100 to $800 per communication are permissible: they are not narrowly tailored to achieve this interest, are over-inclusive and under-inclusive with respect to it, and unnecessarily circumscribe more protected expression than necessary to accomplish it.

First, the City could recoup costs arising from false alarm calls through calibrating false alarm fines rather than punishing the innocent and important communications. In other words, the constitutionally-permissible means to curtail false alarms is to directly prohibit or penalize false alarms. Indeed, this Sixth Circuit has explained that this is how cities within the circuit already handle frivolous 9-1-1 calls:

> The whole point of the 911 system is to provide people in need of emergency assistance an expeditious way to request it. Indeed, in many communities, the use of 911 for any purpose other than to report an emergency or to request emergency assistance is at least a misdemeanor offense.

Johnson v. City of Memphis, 617 F.3d 864, 866–72 (6th Cir. 2010). Increasing fines on actually false alarm calls would more effectively achieve the City's interest by deterring calls to the police when there is doubt.

Indeed, the City has introduced no evidence into the record demonstrating that the City's Alarm Assessments actually reduce the number of false alarm calls received by the City, or actually recoup public dollars spent on those actually causing false alarms. *See Berger v. City of Seattle*, 569 F.3d 1029, 1042 (9th Cir. 2009)("[t]he City represents that the permits are freely issued, and that there is little, if any, screening process. If so, then there is no reason why a performer with a permit is likely to be less hostile than one without a permit"). Simply, Alarm Assessments are not tailored because there is no logical connection between imposing a prior restraint on alarm communications and reducing the number and cost of false alarms. Kathleen Frye, who has operated an Alarm Business in over 30 jurisdictions for over 15 years testifies that "based on my experience and expertise, alarm user registration fees do nothing to reduce the number of false alarms within a city, except for the possibility that those fees may cause less homeowners to install a security alarm in the first place." Affidavit of of Kathleen Frye, ¶ 14,

attached to Plaintiffs' MSJ at Exhibit 6. And deterring home-defense and criminal conduct by curtailing security alarm use is neither a legitimate government interest claim by the City or a legitimate government interest at all. Thus, the City's prior restraints and assessments fail the guiding principle of narrow tailoring - - that the government must "demonstrate that the recited harms" to the substantial governmental interest "are real, not merely conjectural, and that the regulation will in fact alleviate those harms in a direct and material way." *Turner Broadcasting v. FCC*, 512 U.S. at 664–65.

Second, the City could also easily reduce costs arising from false alarms in a more narrowly tailored means through exercising their discretion in light of the facts and circumstances. In *Town of Castle Rock, Colo. v. Gonzales*, the Supreme Court explained that "A well-established tradition of police discretion has long existed, and referenced "[t]he deep-rooted nature of law-enforcement discretion, even in the presence of seemingly mandatory legislative commands." 545 U.S. 748, 756 (2005); *see also Chicago v. Morales*, 527 U.S. 41 (1999)("It is common sense that all police officers must use some discretion in deciding when and where to enforce city ordinances."); *Donaldson v. Seattle*, 65 Wash.App. 661, 671–672 (1992) (No mandatory duty to investigate because such a duty "would be completely open-ended as to priority, duration and intensity").[6] There is no requirement that the City respond to all alarms; nor should it. *See* City's Responses to Plaintiffs' Interrogatories (No. 14: admitting there is no law requiring a police response to each alarm call), attached to Plaintiffs' MSJ as Exhibit 5; *see also* https://www.cincinnati.com/story/news/2015/04/27/city-police-cracking-false-alarms/26481375/ (City police themselves proposing this strategy: "city officials say police will stop

[6] Courts have observed that deference is owed to police decisions whether or not to respond to a call even when that call is a 911 call. See Johnson v. City of Memphis, 617 F.3d 864, 866–72 (6th Cir. 2010).

responding to the worst offenders if they don't pay up . . . that means the police will not respond to any further alarm notifications."). Further, the city could simply "enforce the laws already on the books," such as Section 807-13, which empowers the City to "terminate the registration . . . and any further requests for police or fire responses" in certain circumstances where the probability the alarm is a false alarm. Thus, prior restraints are not justified when the less restrictive means of disciplining, scrutinizing, or ignoring those who are actually inflicting the cost of false alarms on the City is available and apparently has yet to be explored by the City.

Third, the prior Alarm Ban Assessments are overinclusive because the City levies them on homeowners and businesses that never telephone in a "false alarm." And the City fails to provide any statistics demonstrating the percentage of alarm users who cause a false alarm to be made to the City, much less evidence that all do so. Nevertheless, those who never contact the police, contact the police only when actual crime has taken place are forced to pay the monetary charge prior to gaining the right to communicate.

Fourth, the City's prior Alarm Ban Assessments are underinclusive because the City does not seek to "recoup its costs" against any class of citizens who telephone the police other than alarm users who telephone the police, despite the possibility of like-kind communications. No similar impositions are imposed upon others who increase costs to the City by calling, without a security alarm, to report potential criminal conduct: there is no equivalent prior restraint on paranoid or potentially or actually false phone calls from friends, family or neighbors - - whether nosy or well-meaning - - or even security guards. Only calls arising from triggered burglary alarms are singled out. In this respect, the alarm exactions are significantly under-inclusive and arbitrary in achieving the putative government interest of recovering any costs the City incurs arising from faulty crime reporting, whether ultimately accurate or otherwise.

In addition, the ordinance even makes numerous exemptions for those most responsible for false alarm calls. See City's Response to Plaintiffs' Interrogatories, No. 10; attached to Plaintiffs' MSJ as Exhibit 5; see also http://www.fox19.com/story/29114852/fox19-investigates-cincinnati-schools-untouchable-in-violating-citys-false-alarm-law (Cincinnati Public Schools, which is exempt, has accounted for over 3,000 of the false alarm calls to the City). Nevertheless, the city relies upon these high numbers of false alarm calls emanating from government property to justify its exactions on private homes and businesses, even though it then fails to recoup the cost of those false alarms from the worst offenders.

Fifth, the City's Alarm Ban Assessments are not narrowly tailored because the City could simply permit Cincinnati alarm users to communicate with private security or another police force without paying the assessment. See Response to Interrogatory No. 15 (admitting there is no law requiring communications to be funneled solely to the City's Police Department). In either forcing or falsely presuming use of City police, the City either hinders the rights of those who will either (1) only inflict false alarm costs on the City because the City requires it; or (2) never cause false alarm expenses to the City.

Sixth, the City could, as other Ohio cities do, fund this general public purpose of crime reduction through the general tax revenues collected on the backs of Plaintiffs and other home and business owners. If indeed prior assessments are the necessary means of reducing false alarm calls and expenses, then why does no other Southwest Ohio Jurisdiction utilize such a method? Most jurisdictions in Southwest Ohio maintain no security alarm regulations whatsoever; in Southwest Ohio, only Cincinnati, Dayton, Beavercreek, and Kettering maintain any security alarm regulations; and the regulations in Dayton, Beavercreek, and Kettering are not as extensive

or expensive as those in Cincinnati: amongst those cities, only Cincinnati requires annual or biannual alarm user registration fees. *See* Affidavit of Kathleen Frye, *supra.*, at ¶ 9-11.

Seventh, differential burdens on telephone calls based on what is being stated during that call or who is stating it have never been found to withstand scrutiny. *Barr v. Am. Ass'n of Pol. Consultants, Inc*, 140 S. Ct. 2335, 2336, 2346–48 (2020)("the Government concedes that it has not sufficiently justified the differentiation between government-debt collection speech and other important categories of robocall speech, such as political speech, charitable fundraising, issue advocacy, commercial advertising, and the like"). Indeed, a monetary charge related to communication is not narrowly tailored when it "impermissibly targets a select segment of speakers" or "singles out a distinct form of speech." *Lamar Advantage GP Co., LLC v. City of Cincinnati*, 114 N.E.3d 805, 814–15 (Ohio Com. Pl. 2018), citing *Minneapolis Star & Tribune Co. v. Minnesota Comm'r of Revenue*, 460 U.S. 575, 585 (1983)("[a] power to tax differentially, as opposed to tax generally, gives a government a powerful weapon against the taxpayer selected"); *Grosjean v. American Press Co.*, 297 U.S. at 244 (1936).

Eighth, the amount of the Assessments, $50 and $100 up-front, are not tailored to the reduction of false alarms, and the federal District Court - - the only Court to have ruled on the matter - - has already concluded exactly that. The amounts of monetary assessments that limit protected expression are subject to this same strict scrutiny analysis, i.e. an assessment is not narrowly tailored where it is unnecessarily imposed beforehand, greater than necessary, or otherwise uncorrelated to administrative costs associated with permitting: If the government seeks to impose a fee for the operation of a first amendment business, it must demonstrate that "the fees are necessary to cover the costs of the licensing system." *Cascade News, Inc. v. City of Cleveland*, No. 1:92CV0758, 1992 WL 808790, at 3–9 (N.D. Ohio June 15, 1992), citing

Bayside Enterprises, Inc. v. Carson, 450 F.Supp. 696, 705 (M.D.Fla.1978); *see also Am. Civil Liberties Union of Ill. v. White*, No. 09 C 7706, 2009 WL 5166231, at 1–5 (N.D. Ill. Dec. 23, 2009)(it is the government's "burden affirmatively to establish the fit between the Levy and cost of administering the activities covered by the act"); *Century Fed., Inc. v. City of Palo Alto*, 710 F. Supp. 1559, 1561–62 (N.D. Cal. 1988)(only "fees to help defray the administrative cost of necessary licensing may be permissible"); *Fernandes v. Limmer*, 663 F.2d 619, 632–33 (5th Cir. 1981)("A licensing fee to be used in defraying administrative costs is permissible but only to the extent that the fees are necessary"); *Moffett v. Killian*, 360 F.Supp. 228, 231-32 (D.Conn.1973) (invalidating fee imposed for legislative lobbying when in excess of costs of administration); *NAACP v. City of Chester*, 253 F.Supp. 707 (E.D.Pa.1966) (invalidating $25.00 fee for use of a sound truck when defendant did not submit evidence justifying permit fee on the basis of administrative cost); *Sullivan v. City of Augusta*, 511 F.3d 16 (1st Cir.2007)("[i]t [was] a violation of the First Amendment to have charged [the plaintiff] more than the actual administrative expenses of the license, as set forth in the ordinance."); *iMatter Utah v. Njord*, 774 F.3d 1258, 1261–72 (10th Cir. 2014)(("The cost of obtaining a permit must align with the cost borne by the government in hosting the permittee's expressive activity," but "[i]n this case, Utah has failed to show how the costs it imposes on applicants align with the actual expenses Utah incurs in hosting a parade," even though government "must offer some evidence that this amount, and not some lesser amount, is necessary"); *Jacobsen v. Crivaro*, 851 F.2d 1067, 1071 (8th Cir. 1988)(" a governmental entity cannot profit by imposing a licensing fee on a First Amendment right"); *E. Connecticut Citizens Action Grp. v. Powers*, 723 F.2d 1050, 1055–57 (2d Cir. 1983)("no evidence that the administrative fee charged and to be charged to plaintiffs is equal to the cost incurred or to be incurred by defendants for processing plaintiffs' request to use

the property under DOT's control. Absent such a showing, DOT's administrative fee cannot be sustained").

Further, in *Murdock*, the Supreme Court concluded that the licensing fee was unconstitutional because the fee was "fixed in amount and unrelated to the scope of the activities of petitioners or to their realized revenues." *Murdock v. Pennsylvania*, *supra*. "Murdock therefore turned not on the existence of the fee or on the financial ability of the plaintiffs to pay that fee, but rather on the fact that the fee stood between the plaintiffs and any exercise of their protected First Amendment activity." *Id.*

Here, the City has still failed to carry its burden of demonstrating why $50 and $100 prior assessments are necessary, as well as why non-residential assessments twice as high as residential assessments are justified. The City maintains no evidence justifying why the assessments amount to $50 and $100, and especially balks at explaining why the non-residential assessment is twice that of the residential assessment, why these assessments are flat amounts, or why they are non-transferable. *See* City's Responses to Plaintiffs' Interrogatories, *supra.*, at No. 24 (providing no evidence as to why each assessment is "necessary") and No. 9 (stating only that "non-residential locations require, on the whole, more resources to investigate."). And neither the $50 or $100 fee is narrowly tailored to achieve the City's interests in recouping its costs because the City itself admits that alarm assessments and fines raise twice as much revenue as the City spends on security alarm-related administrative expenses, even if homeowners with such alarms could be viewed as somehow imposing those costs on the City. And this is without even taking into account the additional revenue derived from Alarm Business assessments, fines, false alarm assessments, and fines for failure to register alarms. Meanwhile, the plain text of the Alarm Ban ensures that, irrespective of whether a homeowner uses any City services associated with his

alarm, he or she must pay the alarm fee that is flat, "non-refundable," "non-transferable," and "user and location specific." *See* Section 807-1-A4(2)(b). By contrast, when the alarm user is responsible for a "false alarm," "false alarm fees" are imposed commensurate with the use of city services. *Id.* Thus, the fees are not calibrated to the administrative costs to the City, and are impermissibly excessive.

In all of these respects the federal District Court - - the only court to have analyzed and opined on the matter - - has already determined the Alarm Ban's Assessments to be impermissibly underinclusive and untailored, in concluding that "[t]he City does not respond any differently to a call from an alarm system than it does a call made directly to the fire or police department."[7] *See* Order of the Southern District of Ohio Remanding Case to State Court, attached to Plaintiffs' MSJ as Exhibit 7.[8] Judge Barrett further concluded that "residents or non-residents are not receiving a service for the payment of the registration fee," "The City's alarm registration fee is based solely on status instead of the use of any city service," "there is no correlation between the cost of false alarms to the City and the amount of the alarm registration fee [and] this indicates that the alarm registration fee . . . is not a fee based on the costs associated with alarm usage," and homeowners' funds are used for nothing other than "provid[ing] a general public benefit" since "fees which are collected annually are placed into the City's general fund," and "there is no evidence of a special fund to benefit the regulated [homeowners]." *Id.*

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[7] This conclusion follows from, inter alia, the City's Response to Plaintiffs' Interrogatory No. 18. Further, the City concedes that those without security alarms receive the same level of police protection without having to pay any assessment. See Defendants' Response to Plaintiffs' Interrogatory No. 18 ("it is possible to request a police response without having an alarm system…").

[8] White v. City of Cincinnati, Case No. 18-CV-533 (S.D. Ohio 2019), Doc. 9, PageID 184-185.

Consequently, the City has failed to carry its burden in demonstrating that imposing prior assessments of $50 and $100 on alarm-related communications is the least restrictive and most narrowly tailored means of reducing the number of false alarms.

C. Plaintiffs maintain a constitutional right to defend themselves, their families, and their property.

For at least a century, Ohio courts have affirmed that Ohioans maintain a constitutional right to hire others to defend their private property: In 1919, in *In Re W.C. Reilly*, the Court relied upon the language of Section 1, Article I to invalidate a municipal ordinance that attempted to criminalize the conduct of "employing any person as a special guard during any industrial disturbance or strike, unless such person shall first have been empowered to act as such special guard by the director of public safety."[9] The Court reasoned that "the assumption heretofore has been that any one was acting entirely within his fundamental rights when he sought, without let or hindrance, from any one, to protect his property."[10] The Ohio Supreme Court recently acknowledged the same:

> The right to defend oneself has always been permitted in this nation. Further, this privilege has been recognized in both a civil and criminal context since about 1400 in England . . . This privilege also includes the right, under appropriate circumstances, to defend one's family and property. The right of defense of self, property and family is a fundamental part of our concept of ordered liberty . . . Sir William Blackstone, an often-cited and well-recognized commentator in the area of personal rights . . . said: "And we have seen that these rights consist, primarily, in the free enjoyment of personal security, of personal liberty, and of private property. * * * To preserve these from violation, it is necessary that the constitution * * * be supported in its full vigor.

Arnold v. Cleveland, 67 Ohio St. 3d 35, 43–44 (1993), citing Prosser & Keeton, The Law of Torts (5 Ed. 1984) 124, Section 19; 1 Blackstone's Commentaries, Of the Absolute Right of

[9] In Re W.C. Reilly (1919), 31 Ohio Dec. 364, 23 Ohio N.P. (N.S.) 65.

[10] Id.

Individuals (1765) 144; *see also McDonald v. City of Chicago*, 561 U.S. 742 (2010), citing *District of Columbia v. Heller*, 554 U.S. 570 (2008)("Self-defense is a basic right, recognized by many legal systems from ancient times to the present. . . 'the need for defense of self, family, and property is most acute' in the home"). Thus, defending one's home - - whether with a burglary alarm, firearm, security guard, or otherwise - - is a fundamental right, rather than a privilege for which homeowners must "purchase" from local government. *See also City of Akron v. Williams*, 172 N.E.2d 28, 29–32 (Ohio Mun. 1960)("The Constitution of the State of Ohio grants to the people the right to defend life and property and to acquire and protect property . . . Certainly a person may protect his home and life by such means as are necessary to repel the assailant, even to the taking of life"); *State v. Lyons*, No. 43513, 1981 WL 4668, at 3 (Ohio Ct. App. Dec. 3, 1981)("The right of self-defense is expressly guaranteed by the Ohio Constitution, in the First and Fourth Sections of the Bill of Rights . . . Obviously, the state may not require and does not intend that an individual succumb to his attacker and possibly forfeit his life rather than act in self-defense"); *State v. Troyer*, No. 97CA0015, 1997 WL 760954, at 2–5 (Ohio Ct. App. Nov. 19, 1997)("The constitutional provision at issue in this case is Section 1, Article I, Ohio Constitution, where certain 'inalienable rights' are specified. Among these natural rights is included 'acquiring, possessing, and protecting property.'" If, then, a statute is construed in such a way as to make the defense of property a crime even when such defense is reasonably necessary, the constitutionality of such statute must necessarily be questioned").

More globally, the right to defend one's property is a basic property right, particularly in Ohio, where property rights are "fundamental rights." The Supreme Court has squarely and expressly rejected any notion that "basic and familiar uses of property," are a "government

benefit." *Horne v. Dept. of Agriculture*, 135 S.Ct. 2419, at 2430 (2015). For example, "the right to build on one's own property . . . cannot remotely be described as a 'government benefit.'" *Id.*

And in Ohio, Section 1, Article 1 of the Ohio Constitution provides "All men are, by nature, free and independent, and have certain inalienable rights, among which are those of enjoying and defending life and liberty, acquiring, possessing, and protecting property, and seeking and obtaining happiness and safety." Meanwhile, Section 19, Article I states "Private property shall ever be held inviolate, but subservient to the public welfare." In aggregating this provision with Section 1, Article I, "Ohio has always considered the right of property to be a fundamental right. There can be no doubt that the bundle of venerable rights associated with property is strongly protected in the Ohio Constitution and must be trod upon lightly, no matter how great the weight of other forces." *Norwood v. Horney*, 110 Ohio St.3d 353, at 361-62 (2006) (internal citations omitted). Further, these "venerable rights associated with property" are not confined to the mere ownership of property: "[t]he rights related to property, i.e., to acquire, use, enjoy, and dispose of property, are among the most revered in our law and traditions." *Id.* In sum, "the free use of property is guaranteed by Section 19, Article I of the Ohio Constitution." *Yoder v. City of Bowling Green* (N.D. Ohio, 17-CV-2321), citing *Norwood*, *supra*. Thus, pursuant to the Ohio Constitution, this Court must carefully scrutinize the City's arbitrary suppression of Plaintiffs' property rights.

The City concedes that the use of burglary alarms implicates these rights, acknowledging that "[s]ecurity alarm systems serve as useful deterrents to crime," and further that "the presence of an alarm system not only reduces your chance of being burglarized but can minimize any loss

in the event of a burglary."[11] And the City's Alarm Ban suppresses and hinders the exercise of these rights: defense of self, family, and property cannot be practiced without prepayment of the Assessment. These rights are particularly hindered in the many situations where Plaintiffs and others use a home security alarm without any invocation of the City's police, i.e. where the alarm makes a noise to scare away intruders or automatically calls the property owners' cell phone. *See* Sections 807-1-A2; 807-1-A4(2)(a); 807-1-L, forbidding, without payment of the Alarm Assessment, security alarms which merely "give[] a signal [of an unlawful act, or of an emergency], either visual, audible, or both only at the alarm site and which does not alert a governmental organization."

D. Rather than a valid user fee, the Assessments impose an unconstitutional condition on defense of self, family, and property.

The Alarm Ban's $50 and $100 Assessments are unconstitutional conditions the City has imposed on Plaintiffs' exercise of the right to defend themselves, their families, and their property when homeowners employ private security alarms that "do not alert any governmental organization."[12]

As a matter of federal law, "monetary exactions," as opposed to "taxes" or "user fees", "are subject to exacting scrutiny under Nollan and Dolan and "must satisfy the proportionality requirements of Nollan and Dolan." *Koontz*, *supra.*, at 595–636 (relying, in part, on *Home*

[11] City of Cincinnati False Alarm Reduction Unit homepage, available online at https://www.cincinnati-oh.gov/police/special-events-regulations-auctions/false-alarm-reduction-unit/. Last checked September 10, 2019.

[12] These differing takings analyses can be synthesized as follows: (1) outright takings of land, funds, or personal property invokes a traditional takings analysis; (2) regulations of conduct not disturbing a traditional property right invoke only the Penn Central regulatory takings analysis; and (3) forbidding a rightful land use unless funds are first paid invokes Koontz, Nollan, Dolan, and Beavercreek scrutiny, at minimum.

Builders Assn. v. Beavercreek, 89 Ohio St.3d 121, 128 (2000), for the proposition that "Numerous courts—including courts in many of our Nation's most populous States—have confronted constitutional challenges to monetary exactions over the last two decades and applied the standard from Nollan and Dolan or something like it."). When tied to a land-use permit for a specific parcel, which is how the Alarm Assessments here operate, "we treat[] confiscations of money as takings despite their functional similarity to a tax." *Id.* Indeed, a takings analysis applies even "where the government, by confiscating financial obligations, achieved a result that could have been obtained by imposing a tax." *Id.*, at 615. "Mindful of the special vulnerability of land use permit applicants to extortionate demands for money . . . we hold that the government's demand for property from land-use permit applicants must satisfy the requirements of Nollan and Dolan . . . even when its demand is for money." *Id.*, at 619; *see also Am. Furniture Warehouse Co. v. Town of Gilbert*, 245 Ariz. 156, 163 (Ct. App. 2018)("Koontz held that, when applicable, Nollan/Dolan provides the proper analysis when the government conditions issuance of a permit either upon the payment of a fee or upon the transfer of property"); *Koe-Krompecher v. City of Columbus*, 2005-Ohio-6504, ¶¶ 1-24 (exactions takings analysis applies to government "taking personal property, i.e., money, outright with no authority to do so"). In fact, for nearly twenty years, the Ohio Supreme Court has held that monetary exactions for land-use permits, whether characterized as "impact fees" or otherwise, are subject to considerable scrutiny, and cannot be arbitrary. *See Home Builders Association of Dayton & Miami Valley v. Beavercreek*, *infra.*

And as a matter of independent state law, even if the City could impose a "user fee" on Cincinnati homeowners defending themselves, their homes, and families, the Alarm Ban Assessment is not a permissible means of doing so. "[A] municipality may require a license fee for a particular business or activity; however, the amount of such fee must bear a reasonable

relation to the burden imposed, by the activity being licensed and by the licensing process itself, upon the governmental entity involved." *AE Owner L.L.C. v. City of E. Cleveland*, 2019-Ohio-2220, ¶13 ("the proposed occupancy fee constitutes an illegal tax disguised as a fee"), citing *City of Richmond Heights v. LoConti*, 19 Ohio App. 2d 100, 101–16 (Ohio Ct. App. 1969)(t]he ordinance…is unconstitutional as a licensing ordinance because it is wholly out of proportion to any burden imposed upon the municipality by the licensed activity, and because it discriminates against one form of activity which bears no greater relation to the evils sought to be prohibited than do other activities which are not licensed"). A fee that does not comport with this criterion is in fact a tax disguised as a license fee and is unconstitutional. *Id.*

Requiring payments of these Assessments as a precondition to defending one's self, family, and home with a security alarm fails both takings scrutiny and state taxation scrutiny.

First, an assessment for the purposes of "promoting the general welfare of the municipality" is not a valid user fee. *AE Owner L.L.C. v. City of E. Cleveland*, 2019-Ohio-2220, ¶¶ 1-24 ("the purpose of the occupancy fee increase was to provide services for the general welfare of the community . . . In actuality, East Cleveland's proposed occupancy fee was intended to pay for services for the general health and well-being of the community rather than costs reasonably related to managing a specific operation"). "[I]t is difficult to imagine that an ordinance designed to protect and promote the public health, safety and welfare of an entire community could be characterized as anything but a tax." *Id.*, citing *Drees Co. v. Hamilton Twp.*, 132 Ohio St.3d 186, 2012-Ohio-2370.

Here, the District Court concluded that Homeowners' funds are used "to provide a general public benefit." Order of the Southern District of Ohio Remanding Case to State Court,

at p. 5, attached to Plaintiffs' MSJ as Exhibit 7.[13] And "[t]his indicates that the alarm registration fee is a tax for general revenue-raising purposes, and not a fee based on the costs associated with alarm usage." *Id.*, at p. 6. Of course the District Court was correct, and there was no basis for the Court of Common Pleas to ignore it: deterrence of crime, whether through police services or private security, provides a general public benefit. *See* Verified Complaint, Paragraphs 30-33 (the City volunteers on its website that "[s]ecurity alarm systems serve as useful deterrents to crime").[14] Simply put, prevention of burglary and other crimes is not solely a private benefit; it is also a public good. *Town of Castle Rock, Colo. v. Gonzales*, 545 U.S. 748, 760–62 (2005)("criminal acts, 'besides the injury [they do] to individuals, … strike at the very being of society . . .'). On this basis alone, the Alarm Assessment is not a user fee, and is instead an impermissible tax or exaction.

Second, an assessment that is placed into the general fund and is collected without legally-binding restrictions on its use is not a valid user-fee. *AE Owner L.L.C. v. City of E. Cleveland*, 2019-Ohio-2220, ¶¶ 1-24 ("The collected funds were placed in East Cleveland's general fund and were used on any needed expenditure rather than allocated for limited or narrow purposes. The city's general fund, which supports city operations as a whole, provided fire, police, EMS, and service department amenities to all residents.").

Here, the District Court has already concluded that funds generated by the Alarm Assessment are placed into the general fund, and that their use is unrestricted. Order of District Court, at pp. 5-6 ("alarm registration fees, which are collected annually, are placed into the

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[13] White v. City of Cincinnati, Case No. 18-CV-533 (S.D. Ohio 2019), Doc. 9, PageID 184-185.

[14] City of Cincinnati False Alarm Reduction Unit homepage, available online at https://www.cincinnati-oh.gov/police/special-events-regulations-auctions/false-alarm-reduction-unit/. Last checked September 10, 2019.

general fund," and "there is no evidence of "a special fund to benefit the regulated entities or to defray the cost of regulation."). Indeed, the City's own public records display that all revenue from these assessments are placed into the City's "General Funds Account," rather than in an account established for alarm-related expenses. *See* Correspondence Displaying Overcollection of Home Security Exactions, attached to Plaintiffs' Motion for Summary Judgment ("MSJ") at Exhibit 3. And most pernicious, Section 807 contains no textual limit regarding how funds extracted from Plaintiffs, homeowners, and business-owners have been, are being, or will be used.

Third, an assessment is not a valid user fee when the City fails to initially calibrate and then consistently recalibrate the amount assessed to individuals on the basis of the harm or cost they inflict on the City, or on the benefits provided to the individual. *AE Owner L.L.C. v. City of E. Cleveland*, 2019-Ohio-2220, ¶¶ 1-24 ("No cost analysis was completed by East Cleveland establishing the projected cost of inspection services. Therefore, the amount of the occupancy fee does not reflect the amount of money needed").

Additionally, applying takings analysis in *Dolan*, the Supreme Court relied upon the absence of "any special quantifiable burdens created by [the property use] that would justify the particular [exactions] which are not required from the public at large." *Id.*, at 2316-17. The Court reached this conclusion because a "city must make some sort of individualized determination that the required [exaction] is related both in nature and extent to the impact of the proposed [use]." *Id.*, at 2320-21 ("the city has not met its burden. . . the city must make some effort to quantify its findings in support of the dedication for the pedestrian/bicycle pathway beyond the conclusory statement that it could offset some of the traffic demand generated"); *see also Nollan*, 483 U.S., at 836–837 (explaining that "[t]he evident constitutional propriety" of prohibiting a

land use "disappears … if the condition substituted for the prohibition utterly fails to further the end advanced as the justification for the prohibition"); and *Levin v. City & Cty. of San Francisco*, 71 F. Supp. 3d 1072, 1074 (N.D. Cal. 2014)("The Court holds that the Ordinance effects an unconstitutional taking by conditioning property owners' right to withdraw their property on a monetary exaction not sufficiently related to the impact of the withdrawal.").

Similarly, in analyzing whether an "impact fee" is impermissible the Ohio Supreme Court reviews the following factors: "1) was the assessment imposed to further regulatory measures to address a specified issue; 2) was the assessment used only for the narrow and specified purpose and not placed in the general fund; 3) was the assessment imposed by a government in return for a service it provides; and 4) was the assessment calculated and adjusted so that the amount of funds generated were in an amount sufficient to cover the expenses." *State ex rel. Petroleum Underground Storage Tank Release Comp. Bd. v. Withrow*, 62 Ohio St.3d 111, 113, 116-117 (1991). Only "answers affirming the Withrow factors indicate an assessment is a fee." *AE Owner L.L.C. v. City of E. Cleveland*, 2019-Ohio-2220, ¶¶ 1-24 ("Application of the Withrow factors and Am. Landfill analysis indicate East Cleveland's occupancy fee is actually a tax"). Put otherwise, "there must be a nexus between the occupancy fee, the benefit designed to be provided from collection of that fee, as well as satisfaction of any other requirements identified in the relevant case law. Without establishing the conditions identified in the cited case law, a proposed fee is simply a tax disguised as a fee and will be found unconstitutional." *Id.*, at ¶21.

Here, the District Court analyzed these same factors in concluding that the Alarm Assessments are not valid user fees, since they mirror considerations relevant to Tax Injunction Act jurisdiction. It concluded that "residents or non-residents are not receiving a service for the

payment of the registration fee," since "the City does not respond any differently to a call from an alarm system than it does a call made directly to the fire or police department," and that "there is no evidence of a special fund to benefit the regulated [homeowners]." Order of District Court, at pp. 5-6. Predicated on these findings, the District Court maintained little difficulty in reaching a conclusion at the heart of the analysis required by the foregoing binding state and federal precedent: "[t]here is no correlation between the cost of false alarms to the City and the amount of the alarm registration fee. This indicates that the alarm registration fee . . . is not a fee based on the costs associated with alarm usage." Order of District Court, at pp. 5-6.

And of course this is true: Section 807 contains to findings, the City undertakes no individualized analysis, there is no evidence in the text of Section 807 or in support of its enactment displaying an attempt to calibrate costs to collection of revenue, and the City extracts payment from those who defend themselves with alarms that, rather than relying on city services, "do not alert a governmental organization."

Further, summary judgment evidence displays that the City typically overcollects amounts well beyond what is necessary to accomplish the City's administrative ends. *See* Exhibits 2 and 3 to Plaintiffs' MSJ. The plain text of the Alarm Ban ensures that, irrespective of whether a homeowner uses any City services associated with his alarm, he or she must pay the alarm fee that is "non-refundable," "non-transferable," and "user and location specific." *See* Section 807-1-A4(2)(b). The Assessment are at a flat amount, irrespective of use, meaning that ultimately, as the District Court correctly concluded "[t]he City's alarm registration fee is based solely on status instead of the use of any city service." Order of District Court, at p. 5. And there is no plausible justification for calibrating the non-residential rate security alarm Assessment amount at twice the residential rate due to nothing more than conjecture on the size of some

businesses as opposed to some homes (it cannot correct that both the $50 and $100 rates are sufficiently calibrated).

Fourth, the Assessments are arbitrary and insufficiently calibrated because while the City claims that the Assessments are necessary to fund police services, the City forces the Assessments on all who protect themselves with security alarms, even those who (1) have already paid taxes to fund police services; or (2) use a security alarm that "which does not alert a governmental organization." The City concedes that the same Cincinnati Police Department services for which it claims it can impose a monetary charge on Plaintiffs and their Proposed Classes received $146,601,670 from the General Fund, i.e. the tax payments of Plaintiffs and other Cincinnatians, in 2019. Bigham Affidavit, at Para. 6. Indeed, Ohio law is clear that policing is to be funded solely through taxation. *See* R.C. 5705.19. *Page v. City of Wyandotte, MI*, 666 F. App'x 390, 393 (6th Cir. 2016)("[M]unicipalities do not charge a fee-for-service to fund the police and fire departments; they impose levies, i.e., taxes. The franchise fees may be a clever way to surreptitiously increase the City's coffers . . .").

Forcing Plaintiffs and others to pay duplicative additional monetary charges for policing they are unlikely to use due to their employment of alarms that do not alert government is arbitrary, duplicative, and a taking. *Webb's Fabulous Pharmacies, Inc. v. Beckwith*, 449 U.S. 155 (1980)("the seizure of the interest earned was unrelated to any service provided by the Florida court system because a separate statute specified a percentage fee that the court clerk would receive to cover his expenses"); *Engelman v. Budish*, 2015-Ohio-1153, ¶¶ 18-22, 31 N.E.3d 126, 132–33 ("duplication of charges for sewer connection" constituted a "taking"); *Cook Rd. Invests., L.L.C. v. Cuyahoga Cty. Bd. of Commrs.*, 2011-Ohio-2151, ¶23 (the taking of money

through redundant monetary charges for the same governmental services is "arbitrary and unreasonable" and therefore "an unconstitutional taking of property").

Finally, there is no statutory or constitutional precedent for what the City attempts to accomplish here: attempting to charge for a core governmental function, much less an arbitrary amount unrelated to use in response to an exercise of a fundamental right, is literally unprecedented. While an Ohio city may of course issue a water bill commensurate with the amount of water used, police protection is a core governmental function, rather than a "proprietary" function upon which government can impose additional monetary charges. Examples of such proprietary functions include "[t]he establishment, maintenance, and operation of a utility, including, but not limited to, a light, gas, power, or heat plant, a railroad, a busline or other transit company, and airport, and a municipal water supply system." R.C. 2744.01(G)(2)(c).

But police presence (which again, those with private security alarms are not even using or seeking to use here), including police response to potential crime, is not a "proprietary" function: it is a core governmental function for the performance of which additional monetary charges are impermissible. *See* R.C. 2744.01(C)(2)(a)(defining the "provision * * * of police * * * services" as a "governmental function," not a proprietary function);[15] *McCloud v. Nimmer*, 72 Ohio App. 3d 533, 537 (1991)("governmental functions include the provision or nonprovision of police services or protection," and "police services have always been considered a governmental, not a proprietary, function."); *See also Parrett v. Trost*, No. CA99-06-058, 2000 WL 155515, at p. 3 (Ohio Ct. App. Feb. 7, 2000)(City of Cincinnati insisting that "provision of police services" is a core governmental function rather than a proprietary function); *Carder v. Kettering*, 2004-

[15] "Governmental" and "proprietary functions" are defined in R.C. 2744.01(C) and (G).

Ohio-4260, ¶¶ 9-14 (Police "dispatched to a robbery scene," "responding to an emergency call," "proceeding to a scene to aid in the search for a perpetrator," and "police dispatches to inherently dangerous situations that demand a response on the part of a peace officer" are all core governmental functions); *Gabris v. Blake*, 9 Ohio St.2d 71 (1967)("the maintenance and operation of a police department by a municipality is a governmental function"); *Aldrich v. City of Youngstown*, 106 Ohio St. 342, 343–45 (1922)("maintenance, and operation of the police departments of a municipality are done in the exercise of governmental powers. . . The prevention of crime is a purely governmental function, undertaken for the benefit of the public at large. . . ."); *Maddox v. E. Cleveland*, 2012-Ohio-9, ¶ 20 (rejecting the notion that "the governmental function of police protection in this case morphed into a proprietary function"); *Lamar Advantage GP Co., LLC v. City of Cincinnati*, 114 N.E.3d 805, at 820 (Ohio Com. Pl. 2018)(police services are "core or basic governmental services of a large municipality"), citing *Foley v. Connelie*, 435 U.S. 291, 297 (1978)("[a] discussion of the police function is essentially a description of one of the basic functions of government… The police function fulfills a most fundamental obligation of government to its constituency"); *Heck v. City of Freeport*, 985 F.2d 305, 309 (7th Cir. 1993)(identifying the "basic services" of government as "police and fire protection . . ."); *Drees Co. v. Hamilton Twp.*, 2012-Ohio-2370, at ¶ 22-23, 31-32 ("…the fact that the revenue is earmarked for police protection, fire protection, road improvement, and parks that benefit the entire community is the key factor. The assessments raise revenue for the public's benefit. All members of the community will benefit from improved roadways and parks, as well as from consistent levels of police and fire protection")(emphasis added).

Here, the Alarm Assessments, which the City claims funds policing, are not calibrated to account for (1) the amounts Plaintiffs and others have already contributed to the cost of policing

in their roles as taxpayers; or (2) the City's preexisting obligation to provide police protection irrespective of payment.

In conclusion, even holding all else aside, the City's Alarm Assessments impose an unconstitutional condition on Plaintiffs' exercise of their rights to speak and petition and to defend self, family, and property

IV. Conclusion

The logic underlying the City's attempt to convert policing from a core governmental function to a privatized proprietary function is without a limiting principle in scope or amount. This cannot be, and fortunately is not, the law. Consequently, this Court must reverse the Trial Court's erroneous Entry denying Plaintiffs' Motion for Summary Judgment, which sought to declare the City of Cincinnati's prohibition on security alarm usage without prior payment of an arbitrary assessment unconstitutional, and to enjoin the same, and granting Defendants' Motion for Summary Judgment on the same topic.

Respectfully submitted,

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CERTIFICATE OF SERVICE

Pursuant to Ohio Rules of Civil Procedure 5(B)(2)(c) and 5(B)(2)(f), the undersigned does hereby certify that a true and accurate copy of the foregoing was served upon the following via electronic mail on this 24th day of May, 2021.

/s/ *Maurice A. Thompson*
Maurice A. Thompson